PMOC MONTHLY REPORT

East Side Access (MTACC-ESA) Project

Metropolitan Transportation Authority

New York, New York

Report Period August 1 to August 31, 2013

PMOC Contract No. DTFT60-09-D-00007

Task Order No. 7, Project No. DC-27-5235, Work Order No. 1

Urban Engineers of New York, P.C., 2 Penn Plaza, Suite 1103, New York, New York 10121

PMOC Lead: V. Simuoli, 212-736-9100; vrsimuoli@urbanengineers.com

Length of time on project: Five years on project for Urban Engineers

TABLE OF CONTENTS

COVER **1**

TABLE OF CONTENTS **2**

THIRD PARTY DISCLAIMER **3**

REPORT FORMAT AND FOCUS **3**

MONITORING REPORT **3**

1.0 PROJECT STATUS **3**

a. Design 3

b. Procurement 4

c. Construction 5

d. Quality Assurance and Quality Control (QA/QC) 10

2.0 SCHEDULE DATA **10**

3.0 COST DATA **11**

4.0 RISK MANAGEMENT **12**

5.0 ELPEP COMPLIANCE SUMMARY **13**

6.0 SAFETY AND SECURITY **14**

7.0 ISSUES AND RECOMMENDATIONS **15**

TABLE 1- PROJECT BUDGET/COST TABLE (AS OF JULY 31, 2013) **1**

TABLE 3 – COMPARISON OF STANDARD COST CATEGORIES: FFGA VS. CBB **2**

APPENDICES

APPENDIX A – ACRONYMS

APPENDIX B – TABLES

Table 1 – Project Budget/Cost Table (as of July 2013)

Table 2 – Summary of Critical Dates

Table 3 – Comparison of Standard Cost Categories: FFGA vs. CBB

Table 4 – Core Accountability Items – August 2013

THIRD PARTY DISCLAIMER

This report and all subsidiary reports are prepared solely for the Federal Transit Administration (FTA). This report should not be relied upon by any party, except FTA or the project sponsor, in accordance with the purposes as described below.

For projects funded through FTA Full Funding Grant Agreements (FFGAs) program, FTA and its Project Management Oversight contractor (PMOC) use a risk-based assessment process to review and validate a project sponsor's budget and schedule. This risk-based assessment process is a tool for analyzing project development and management. Moreover, the assessment process is iterative in nature; any results of an FTA or PMOC risk-based assessment represent a "snapshot in time" for a particular project under the conditions known at that same point in time. The status of any assessment may be altered at any time by new information, changes in circumstances, or further developments in the project, including any specific measures a sponsor may take to mitigate the risks to project costs, budget, and schedule, or the strategy a sponsor may develop for project execution. Therefore, the information in the monthly reports will change from month to month, based on relevant factors for the month and/or previous months.

REPORT FORMAT AND FOCUS

This report is submitted in compliance with the terms of the Federal Transit Administration (FTA) Contract No. DTFT60-09-D-00007, Task Order No. 002. Its purpose is to provide information and data to assist the FTA as it continually monitors the grantee's technical capability and capacity to execute a project efficiently and effectively, and hence, whether the grantee continues to be ready to receive federal funds for further project development.

This report covers the project management activities on the East Side Access (ESA) Mega-Project managed by MTA Capital Construction (MTACC) with MTA as the grantee and financed by the FTA FFGA.

MONITORING REPORT

1.0 PROJECT STATUS

a. Design

As of July 31, 2013, MTACC reported that the Engineering/Design effort was 97.7% complete in the ESA July '13 Monthly Progress Report; however the Cost Report shows only 93.1% complete on a cost invoiced basis. The percent complete varies monthly depending on the award of tasks to the GEC.

The 100% submittal for the Stage 3 catenary design (FHA03) was sent to Amtrak on May 3, 2013 and discussed with them in early July. Amtrak requested a walk-through on July 26, 2013 to address the bonding and grounding plan, which resulted in additional comments that the Project Management Team (PMT) subsequently addressed. The 100% submittal is now finalized.

Amtrak is currently reviewing the FHA04 Stage 4 catenary 60% design submittal and ESA is waiting for comments. The PMT is proceeding with the 90% design and anticipates completing it by the end of September 2013.

The confirmatory set of drawings for CM014B was circulated between the major stakeholders (LIRR, MNR) in April 2013 for assurance that all of their comments have been adequately

addressed. LIRR indicated their satisfaction with the current design at a July 29 meeting. A similar meeting is being scheduled with MNR but, as of this report, a date has still not been established. [redacted] The forecast date for presenting this to the CCC remains to be determined (TBD). [redacted] This work would be done by an MTA on-call track contractor in early 2014. As of the end of August 2013, this item has not been brought to the CCC. The remaining scope of CH057 is forecast to be advertised in the 4Q2013, with an anticipated Notice to Proceed (NTP) in the 2Q2014. The major scope items in CH057 will be construction of the loop box structure, replacement of the 48th Street Bridge for ML2, and the Tunnel D Approach Structure. [redacted]

The 90% submittal for CH058 (Harold Structures - Part 3b) remains on hold as a result of the ESA PMT rethinking the method of construction for the eastbound re-route structure (in order to utilize a 45-60 day track outage that may be granted for the work in the future). Possible options being examined are to continue with the current jacked shield tunnel approach or construct the tunnel via an alternate method that can make better use of available track outages, but will require a change to the sequencing of other Harold infrastructure work. LIRR and Amtrak are discussing the matter and plan to decide on a construction alternate and the overall Harold rescheduling in early September 2013.

The GEC repackaging modification for the CM007 package was approved at the June 5, 2013 MTA Board meeting. The modification to the GEC contract to start the repackaging was issued on July 19, 2013. MTACC has requested that the GEC develop the basic concepts for a cast-in-place/pre-cast option. Cast-in-place vs. pre-cast discussion materials will be ready in the beginning of September 2013. These materials will be used to form the basis of an industry outreach to determine the best approach. The GEC forecasts that it will need four to six months to complete the entire bid package.

Provision of the stand-alone Track and Signal Installation Contract package (CS284) is progressing with an expected completion date of September 30, 2013. The Traction Power Contract package (CS084) had an anticipated completion date of August 30, 2013; however this forecast was not met. The PMT is now forecasting completion by mid-September 2013.

b. Procurement

As of the end of July 2013, the total procurement activity on the project was 61.6% complete against the $8.708B budget. There have been $5.367 billion in contracts awarded to date. The

PMT's calculations on procurement are done against the $8.245B budget, without the Rolling Stock Reserve.

The second new contract package of the CM012R repackaging, CM006 (northern structures), was advertised on August 15, 2013, with RFP documents made available to perspective proposers on August 26, 2013. The current RFP due date is October 17, 2013. The third new contract package, CM007 (Main Caverns) remains under development. The advertise date for this package remains TBD.

The continuing slippage of awarding CS179 (Systems Package 1) remains a major concern. This contract is on the critical path of the May 2012 approved baseline schedule. MTACC committed in April 2013 to have a recommendation for award ready to present to the MTA Board in July 2013, and that date was not met. The ESA PMT then re-forecast recommendation to award ready to present at September 2013 MTA Board meeting, with award of the Contract following in late September/early October 2013. The PMOC was informed in August 2013 that MTACC will not have a recommendation for award in time for the September 2013 Board meeting, as the ESA team continues negotiations and has yet to select a contractor. The planned award date and NTP remains TBD.

The PMT has decided to split the Tunnel Systems package (CS284) into two packages: one for track work and one for the traction power work. Procurement dates for this package are now TBD. This split will have an impact on the Systems Package 1 (CS179) Contractor, who is responsible for systems integration for these packages.

Notice to Proceed (NTP) for the Signal Equipment package (VS086), which is being negotiated as an RFP, remains TBD (note: proposals for this RFP were received in January 2013).

The previous IPS update indicates that the CM014B package will be ready to advertise on September 1, 2013. The ESA PMT has stopped providing IPS updates, so there is no current forecast on when this package will be advertised, however it clearly will not be September 1, 2013.

Bids were opened for CH057A on August 8, 2013. There were eight bidders and the low bid was $104,300,000, which was under the ESA's budgeted amount. Formal award is expected in September 2013. Remaining work in CH057 was forecast in the previous IPS to be advertised in August 2013, with NTP forecast for January 2014. The date is now TBD as the PMT considers repackaging options based on the outcome of the Harold work schedule review/re-baselining that it is conducting.

c. Construction

The PMT reported in its July 2013 Monthly Progress Report that the actual construction progress was 52.9% vs. 55.1% planned. Over the last several months, progress has only been proceeding at about half the rate as projected.

Manhattan: **CM009/019 – Manhattan Tunnels Excavation/Structures Part 1**: The Estimate at Completion (EAC) for the CM009 contract remained at $402,706,000 as of July 31, 2013. Substantial Completion (SC) of the base contract was achieved on June 1, 2013, after which the MTACC awarded Contract Modification #46 to the contractor for the application of shotcrete and invert construction in 3 of the previously excavated caverns. This work is advance construction for the future CM006 contract. The MTACC established new Milestone 9A, with a

Substantial Completion date of September 30, 2013. Actual progress for July 2013 was 1.3% versus 1.8% planned. Cumulative progress through July 31, 2013, adjusted for Milestone 9A, was 96.2% actual versus 96.4% planned.

CM019 Status: All construction for Substantial Completion (except punch list repairs) was completed by June 1, 2013, but the PMT has not been able to declare SC yet because of an on-going Code Compliance issue with pneumatically applied concrete (PAC) that CM019 used throughout the caverns. Currently, the issue is being reviewed by an independent engineer, but there is no estimated date for a decision. Until this determination is made, the PMT will not be able to issue a Substantial Completion notice.

Construction Progress: During August 2013, the CM009 contractor continued construction with the installation of waterproofing and reinforcing bars, and the initial placement of invert concrete in the GCT 3 and GCT 4 West Wye and Crossover caverns and the GCT 5 West Wye cavern.

CM013 – 50th Street Vent Facility: MTACC reports that through July 31, 2013, the EAC remains at $126.41 million. Forecast Substantial Completion date has changed to December 31, 2013 from the previous November 2013. As of July 31, 2013, the actual percent complete was 85.2% vs. 99.9% planned.

Construction Progress: The stop-work-order issued by the Code Compliance Unit (CCU) over the placement of PAC was "partially" lifted during August 2013. This allowed the resumption of Stair #1 construction in the shaft. The erection, inspection and approval of a CCU required mock-up of the pneumatic concrete wall remains. Concrete slab placement within the building is complete. Concrete block wall erection is 90% complete throughout the building. Preparations began for the installation of the finish building and utility chase cladding.

CM013A – 55th Street Vent Facility: MTACC reports that through July 31, 2013 the EAC remained at $58.85 million. Forecast Substantial Completion date is now March 11, 2015 from the original and previous April 5, 2015. As of July 31, 2013, MTACC reports that the actual percent complete is slightly ahead of schedule at 16.1% vs. 15.3% planned.

Construction Progress: During August 2013, the contractor continued with mechanical excavation in the northeast and northwest sections of the site and began excavation at the southwest section under the street decking. Installation of temporary sewer bypass and steam main was completed. Support of utilities under the decking continued, and the Project Office continues to work with Con Ed on expediting their required abatement work so that steam main work can proceed.

CM004 – 44th Street Building Demolition and Fan Plant Structure; 245 Park Avenue Entrance: MTACC reports that through July 31, 2013 the EAC remained at $63.33 million. The Forecast Substantial Completion date is January 15, 2014 for the Vent Plant. Beneficial Use for the 245 Park Entrance is forecast for January 15, 2014. The actual percent complete is 85.5% versus 95.2% planned.

Construction Progress: The above-grade steel erection is complete. The remaining below grade steel fabrication is complete and erection of this steel is forthcoming. This below grade steel is necessary for the placement of the ground floor concrete slab and support for the Gantry Crane that is being re-installed in the building to support upcoming contracts. The second floor steel has been fabricated. This steel, some louvers, windows, limestone building finish and other

materials will be stored for installation by the CM014B contractor after the Gantry Crane is removed. The contractor continued with application of intumescent paint and column/beam concrete encasement. Completion of temporary stair erection continued.

CM014A– Concourse and Facilities Fit-Out: MTACC reports that through July 31, 2013 the EAC remains at $52.00 million. Forecast Substantial Completion date remains February 15, 2014. The actual percent complete reported is 44.5% versus 85.9% planned. This large gap between percent complete versus planned can be largely attributed to the Supervisory Control and Data Acquisition (SCADA) system redesign (based on LIRR requirements), which resulted in a hold being placed on fabrication and delivery of all power system equipment until the redesign was complete.

Construction Progress: During August 2013, the contractor completed floor slab placement. Masons continued with block wall erection for various rooms. Placement of equipment pads began and erection of sheet metal ductwork and overhead piping continued. HVAC units were delivered and stored at the site. Testing of ABB Transformers was successfully completed at the Texas plant under the observation of an MTACC representative.

Queens: **CQ031 – Queens Bored Tunnels and Structures**: The Estimate at Completion remained at $780,384,000 as of July 31, 2013. The MTACC forecast for Substantial Completion of the amended CQ031 contract has been extended to April 9, 2014. The amended contract presently includes installation of secant piles and support of excavation (SOE) for the eastward extension of Tunnel A and the construction of a concrete slab for track support under Amtrak/LIRR Lines 2 and 4 for the future Westbound Bypass Tunnel. Cumulative progress through July 31, 2013 was 97.5% versus 100.0% planned.

Construction Progress: During August 2013, the contractor successfully completed installation of the concrete slabs under Lines 2 and 4 and continued to install SOE secant and soldier piles for the extension of Tunnel A. As of August 29, 2013, the contractor had installed 179 secant piles (of a total of 246) and all 30 soldier piles. Additionally, the contractor continued final painting and punch list repairs at the Yard Lead Emergency Exit and B-13 Substation buildings.

CQ032 – Plaza Substation and Queens Structures: The Estimate at Completion remained at $192,680,000 as of July 31, 2013. The MTACC forecast Substantial Completion date has been extended by a month to August 1, 2015. Actual construction progress for July 2013 was 3.5% versus 3.9% planned. Cumulative progress through July 31, 2013, was 33.3% actual versus 61.7% planned. ESA and the Contractor are presently developing a re-baselined Contract schedule based upon additional work on the 63rd street eastbound tunnel rehabilitation that will more accurately reflect the status of actual vs. planned work.

Construction Progress: During August 2013, the contractor completed excavation in Area 1A, continued to pour concrete invert slab sections in the Plaza Substation area, continued waterproofing and shotcrete application in the Yard Lead Trench, continued to install CMU walls on the exterior and interior of B-10 Substation, and continued miscellaneous construction at the intermediate facility buildings at Roosevelt Ave., Vernon Blvd, and 12th and 29th streets.

CQ039 – Northern Boulevard Crossing: As of July 31, 2013, the Estimate at Completion remained at $101,605,000. The MTACC forecast Substantial Completion date was extended by 3 weeks to September 6, 2013. Actual construction progress for July 2013 was 0.6% versus

0.0% planned (project was expected to be complete by now). Cumulative construction progress through July 31, 2013, was 96.5% versus 100.0%.

Construction Progress: The contractor completed removal of the four remaining support piles that were located inside the Northern Blvd. tunnel in late July 2013, and made punch list repairs during August. All major construction at the site has been completed, but Substantial Completion will not be declared until the compensation grouting behind the tunnel liner is complete. This process is presently being delayed because the ground around the tunnel liner has not fully thawed from the ground freeze (thaw was begun in February/March 2013 timeframe). There is no forecast date for when the full thaw will occur.

Harold Interlocking: CH053 Contract – Harold Structures Part 1 and G.0.2 Substation: Through July 31, 2013, the Estimate at Completion remains at $281,038,000. The MTACC forecast Substantial Completion date was extended by one week to June 11, 2014. Actual construction progress for July 2013 was 1.2% versus 0.0% planned (project was supposed to have been completed). Cumulative construction progress through July 31, 2013, was 81.0% actual versus 100.0% planned. Although significantly behind schedule, this contract is not currently on the overall ESA project critical path.

Construction Progress: The CH053 contractor completed removal of existing signal towers 29 through 34 during August 2013. This allowed the contractor to resume installation in support of excavation (SOE) and excavation for the westward extension of the Tunnel A Approach structure (the towers prevented this previously). The contractor also continued construction of the bridge abutments at 43rd and 48th streets for the new realigned LIRR ML4 track and continued construction of the 43-S2 retaining wall between 43rd and 48th streets. Due to limited Force Account support because of the continuous westbound bypass concrete slab construction during the first half of August 2013, the contractor's progress on the 12kV ductbank and cable installation was greatly restricted, although a small amount of miscellaneous progress was made.

CH054A – Harold Structures Part 2A: The Estimate at Completion remains at $64,271,000, although the forecast Substantial Completion date has been extended to May 29, 2014. Actual construction progress for July 2013 was 2.0% versus 0.0% planned (project was supposed to be complete). Cumulative construction progress through July 31, 2013, was 54.6% actual versus 100.0% planned. Although significantly behind schedule, this contract is not currently on the overall ESA project critical path.

Construction Progress: During August 2013, the contractor continued installation of 12kV ductbank west of electric manhole #20.

Railroad Force Account:

FHA01 – Harold Stage 1 Amtrak: The Estimate at Completion remained at $16,382,000 through July 2013. The MTACC's forecast for Substantial Completion of FHA01 was extended 5 weeks to June 11, 2014. Actual construction progress for July 2013 was 1.3% versus 1.3% planned. Cumulative construction progress through July 31, 2013, was 90.4% actual versus 92.5% planned. The bulk of the remaining FHA01 construction consists of Electric Traction (ET) relocation of catenary wires on structures erected by the CH053/CH054A contractor, as well as ET protection for the contractor. FHA01 is not presently on the critical path for the overall ESA project.

Construction Progress: During August 2013, Amtrak Force Account ET personnel continued to make various catenary wire relocations and other catenary modifications throughout Harold Interlocking as required by the approved design.

FHA02 – Harold Stage 2 Amtrak: The Estimate at Completion remained at $38,495,000 during July 2013. The MTACC's forecast for Substantial Completion also remained at June 8, 2014. Actual construction progress for July 2013 was 2.3% versus 2.8% planned. Cumulative construction progress through July 31, 2013, was 67.3% actual versus 81.7% planned. The majority of the remaining 2013 work will be the Communications and Signals (C&S) installation and cutover of "F1" Interlocking. The cutover is presently scheduled for the weekend of November 1 – 3, 2013. FHA02 is not currently on the critical path of the overall ESA project.

Construction Progress: Amtrak Communications personnel completed installation of main communication cables into the "F1" CIH and Signal personnel continued to install conduits and cable and make circuit revisions and cable terminations for the "F1" CIH. Additionally, C&S personnel continued to install signal cables from the "F1" CIH to the various signal cases throughout "F1" Interlocking.

FHA03 – Harold Stage 3 Amtrak: The ESA PMT opened Stage 3 of the project in July 2013 with the authorization for all Amtrak disciplines to participate in the installation of the concrete slabs for the support of Lines 2 and 4 for when the future jacked box for the Westbound Bypass tunnel is installed. This involved Track Department removal and reconstruction of approximately 1,000 LF of each track along with the appropriate C&S and ET support as the slabs were installed. The ESA PMT established an initial Estimate at Completion of $1,914,000 for the work with a Substantial Completion date of August 20, 2013. A special summer track outage was scheduled from July 19 to August 18, 2013, for the construction. As of August 31, 2013, Amtrak completed all of its planned work for this early Stage 3 task on schedule.

Construction Progress: Amtrak Track personnel removed and reconstructed approximately 1,000 LF of Line 2 during July 2013 and approximately 1,000 LF of Line 4 during August 2013. The C&S and ET Departments supported this work as appropriate during the summer track outage.

FHL01 – Harold Stage 1 LIRR: The Estimate at Completion remained at $21,860,000 during July 2013. The MTACC's forecast for Substantial Completion was extended 3 weeks to September 24, 2014. No construction progress was made on FHL01 during July 2013 because all LIRR Force Account efforts were concentrated on FHL02 and FHL03 work. As a result, the cumulative construction progress through July 31, 2013 was 75.2% actual versus 86.4% planned. Remaining FHL01 work includes installation of track turnouts, C&S equipment installation to prepare for Stage 2 cutovers of Harold and Point Interlockings, and traction power relocations and cutover of the signal power line, as well as cable installation for the re-located GO2 Substation. FHL01 is not currently on the critical path for the overall ESA project.

Construction Progress: As noted above, there was no FHL01 construction during July 2013.

FHL02 – Harold Stage 2 LIRR: The Estimate at Completion for FHL02 remained at $64,457,000 during July 2013. The MTACC's forecast for Substantial Completion remained at November 17, 2015. Actual construction progress for July 2013 was 1.6% versus 2.2% planned. Cumulative construction progress through July 31, 2013, was 26.8% actual versus 30.8% planned. Remaining work in FHL02 includes installation of 15 track turnouts, installation of 6

Central Instrument Locations (CILs) in Harold Interlocking, installation of new third rail for additional tracks that will be constructed, and separation of the new LIRR signal power system from the existing Amtrak signal power system.

Construction Progress: During July 2013, LIRR C&S personnel continued to test, make circuit revisions, and other preparations for the cutovers of the new Point Interlocking and several new signal cases in Harold Interlocking which are scheduled for cutover in 4Q2013.

FHL03 – Harold Stage 3 LIRR: In conjunction with the concrete slab installation noted in FHA03, above, and in order to make maximum use of the special summer track outage, the ESA PMT authorized the LIRR to begin work on Stage 3 with its approval to renew approximately 900 LF of track on Lines 2 and 4 and install 2 turnouts contiguous with the Amtrak work. The ESA PMT has not established an initial Estimate at Completion for this early LIRR Stage 3 work yet, but it did establish the Substantial Completion date of August 20, 2013. Monthly and cumulative construction progress was the same through July 31, 2013. Actual progress was 25.0% versus 25.0% planned.

Construction Progress: LIRR Track personnel removed and reconstructed approximately 900 LF of track and installed 1 new turnout on Line 2 during July 2013. In August 2013, LIRR Track personnel removed and reconstructed approximately 900 LF of track and installed 1 new turnout on Line 4.

d. Quality Assurance and Quality Control (QA/QC)

ESA Project Quality Manual (PQM): The ESA Quality Manager and MTACC's Chief of Quality, Safety, and Site Security are still finalizing a draft of Revision 7 of the PQM and it is now scheduled to be sent to the PMOC for review by the middle of September 2013.

Submission of As-Builts: The construction Contractor for the CH053, CH054A, and CQ032 Contracts continues to submit as-built drawings late and those that are submitted are not being sent as CAD files per contractual requirement, so ESA asked the GEC to convert them to the proper format. The PMOC is concerned that this issue is still not resolved and that the Contractor is not complying with their contractual requirement. The PMOC recommends that ESA management press to immediately resolve this issue.

PMP-Related Procedures Training: MTACC has issued 78 procedures. Training for the ESA staff commenced in July 2013. On August 7, 2013, training was conducted for 45 ESA employees on seven MTACC Construction Procedures and on August 21, 2013, 51 ESA employees were trained on one Configuration Management Procedure. Training for six more Construction Procedures is scheduled for September 4, 2013. MTACC plans to conduct training sessions every two weeks and cover additional subjects including Safety and Administration. The PMOC will continue to monitor progress in this area.

2.0 SCHEDULE DATA

The PMT did not submit its IPS#50 this month, and stated in its monthly report that "ESA continues its program level review with a target for issuing a revised draft baseline for review in September 2013. Until such time as that rebaseline is issued, the monthly schedule report will only contain narrative and simple start, finish dates for active contracts." ESA has stated in its June 2013 Quarterly Progress Report that a draft baseline will be ready for review in mid-September 2013.

The ESA PMT briefed the FTA/PMOC on the CM005/006 contracts cost and schedule status on August 16, 2013. The CM005 Contract has a 29 month duration (to substantial completion). The CM006 Contract has a schedule duration projection of 32 months (inclusive of two months embedded contingency).

ESA presented a preliminary "top down" schedule for Contract CM007 as part of a briefing to the FTA/PMOC on that Contract on August 28, 2013. The overall duration of this contract is 39 months with a projected NTP of April 7, 2016 (unlimited access) and Substantial Completion on July 5, 2019. NTP for limited access is projected to occur on July 1, 2015 when/if funding becomes available. Between July 1, 2015 and April 7, 2016 procurement of pre-cast concrete will commence, as well as other submittals and administrative requirements. The unlimited NTP start date on April 7, 2016 coincides with the substantial completion of CM005 – Manhattan South Structures and the expiration of a two (2) month hand-off period between contracts. This Contract will also have two months of embedded contingency.

As it currently stands, the original 42 month projected duration of the CM012R Package has become 69-months for the re-packaged scope of work.

Project Critical Path: ESA's 2012 baseline schedule critical path went through Contracts CM012R (42 months), then a portion of Contract CS179 (only 8 months of total Contract duration), then IST (15 months), and finally LIRR IST (3 months), The PMOC believes that the new critical path will have the same structure, with CM005, CM006, CM007 replacing CM012R, however the current project critical path cannot be determined until ESA provides an Integrated Project Schedule which it has stated it will not do until the future contracts are incorporated and properly linked in the IPS.

Schedule Contingency: Schedule contingency must be developed as part of the Program re-baselining effort. At present, there is no schedule contingency for the Program given that CM007 is now projected to finish 3 months before the current RSD.

3.0 COST DATA

Funding: MTACC announced at the May 2012 Capital Program Oversight Committee (CPOC) meeting that an additional $720 million will need to be identified in the MTA 2015 – 2019 Capital Plan to cover the new project baseline budget. The funding request for the 2015 – 2019 Capital Program will be submitted to the NYS Capital Program Review Board (CPRB) in September 2014. The MTA stated in April 2013 that it would review any Program budget changes resulting from the new packaging plan for CM012R and compare it to funding availability in the current MTA Capital Plan. Results of this comparison were to be discussed internally with the MTA Board in July 2013. As of this report the PMOC has not been informed as to whether or not this discussion occurred.

Budget/Cost: The PMT has reported that as of July 31, 2013, the actual total project progress was 57.0% vs. 58.7% planned progress resulting from the Current Baseline Budget (CBB) and the actual construction progress was 52.9% vs. 55.1% planned based on invoiced amount.

As of July 31 2013, the Current Baseline Budget (CBB) as shown in the Standard Cost Categories (SCCs) remains at the baseline value of $8.708 billion. There were two (2) changes in SCCs this month arising from transfers of scope related to the former CM012R Package. SCC #10 (Guideway and Track Elements) increased by approximately $3M and SCC #20 (Stations,

Stops, Terminals, and Intermodal) decreased by the same amount. This reflects the set-up initially made by the PMT for tracking and reassigning costs by SCC (i.e. work didn't change, scope was transferred into a new package). Short of a corrected allocation in the SCCs performed at the next re-baseline, this will continue to be an issue that arises monthly.

Also, despite the rejection of low bid for CM012R in October 2012, the recent Contract awarded for CM005, which is approximately $65M above the existing budget for that work, and the recent new estimate for CM006, which is about $170M above the budget for that work, the PMT continues to maintain its pre-bid estimate value in the Current Baseline Budget (CBB), and just uses the original budget reduced by actual contracted amounts to reflect the funds available for the remaining scope of work. The PMT will not make any adjustments because changes have not been approved by MTACC Senior Management, so what might appear to represent expected costs is solely a statement of the ESA budget, which was set and will not be modified at present. The PMT has indicated it is re-examining the Project Cost and Schedule, with schedule results anticipated for mid-September, and cost results anticipated before the end of 2013.

[redacted]

The current Budget and Cost data is shown in Table 1 in Appendix B of this report. Table 3 in Appendix B of this report shows a comparison of the FFGA Baseline Budget in Standard Cost Categories (SCC) vs. the MTA's CBB.

Contingency: [redacted]

Change Orders/Budget Adjustments: The PMT reported that during July 2013, there were eight change orders executed over $100K, with a net value of $29.1M.

4.0 RISK MANAGEMENT

Status: ESA has initially committed to holding Monthly Risk Review Meetings but has only achieved a bi-monthly rate to date. The last meeting was held on July 31, 2013.

The PMT has experienced the loss of some key senior management staff within the last few months, including most recently the Program Manager for Rail Systems, which places extra demands on current staff to meet the project needs. Although ESA has hired a program manager for the Harold work, the PMOC believes that the recent departures of key personnel create a risk to the Technical Capacity and Capability of the PMT.

ESA conducted a Risk Workshop for CM006 in June 2013 and distributed some input data to the participants for comment. The PMOC provided its comments on this data in July 2013. MTACC is planning to issue the final report with the results in early September 2013.

The systems work and associated packages (CS179, CS284, and CS084) continue to be evaluated for interface issues. ESA planned to re-run the risk model developed from the April 2013 Systems Risk Workshop in August 2013 using revised data based on a more current definition of the interface milestones associated with the CM012R repackaged contracts CM005; CM006; and CM007. The model has not been re-run as of the end of August 2013.

Minimal progress has been made on producing an Integrated Master Schedule which overlays the ESA Harold work schedule on an Amtrak Program of Projects that may compete for limited resources. Amtrak provided a schedule for the Moynihan project for remaining work in 2013; however ESA has yet to develop the framework for the Integrated Master Schedule.

ESA is currently working on schedule and cost estimate reviews for both the CM007 and CM014B contracts. These reviews will include updated milestone information available from the CM005 bid and the CM006 risk workshops that will revise contract interfaces and milestones in the Program IPS. The CM014B risk workshop is expected to begin when the schedule and estimate reviews are completed. The CM007 risk workshop is forecast for some time in the 4Q2013 and is anticipated to be done between issuance of the Request for Expressions of Interest and the Request for Proposals.

The 4D model for the CM007 contract presented at the August 28, 2013 meeting did not address interfaces with other contracts. In order to be a truly useful tool, the PMOC recommends that the model be updated to provide a capability to run "clash detection" among all interfaced contracts. This capability will allow for a more accurate determination of the interface risks associated with this contract and will make the results of a risk assessment more meaningful.

The Contract Packaging Plan (CPP) will be updated after the re-baseline is completed. There is currently no forecast date for issuing the updated CPP.

5.0 ELPEP COMPLIANCE SUMMARY

The current status of each of the main ELPEP components is summarized as follows:

- **Technical Capacity and Capability (TCC):** The PMOC has completed its review of the draft PMP Revision 9.0, and forwarded its comments to the FTA-RII Office in August 2013. Regarding PMP training, the PMOC has been advised that MTACC has completed its audits to establish where training efforts need to be focused. The audit report was forecast to be available in August 2013; however MTACC is now forecasting that the report will be available in September 2013. MTACC started procedures training in July 2013. The PMOC will continue to monitor progress in this area. PMOC's review of the MTACC update to the March 2010 Technical Capacity and Capability Plan for ESA and SAS has been completed and comments were forwarded to FTA-RII Office in August, 2013.
- **Risk Mitigation Capacity Plan (RMCP):** FTA-RII provided its conditional acceptance of the RMCP in its May 24, 2012 letter to MTACC. The PMOC has verified RMCP final acceptance based on its incorporation into the RMP.

- **Risk Management Plan (RMP):** FTA formally notified MTACC of its conditional acceptance of the RMP (Rev. 2) by letter dated March 4, 2013, based on MTACC correcting an error and expanding discussion of certain risk and mitigation topics.
- **Continuing ELPEP Compliance:** The following ELPEP components continue to need improvement: Management Decision; Design Development; CCC Process and Results; Stakeholder Management; Issues Management; Procurement; Timely Decision Making; Risk-Informed Decision Making.

The next ELPEP Quarterly Review Meeting with MTACC, FTA-RII, SAS and ESA projects and the PMOC is scheduled for September 12, 2013.

With MTACC's submission of its East Side Access FTA Quarterly Report (Apr, May, June '13) and the July 2013 monthly report, the PMOC notes that the ESA project is not in compliance with ELPEP and is not meeting some of the more important requirements of the SMP and CMP sub-plans to the PMP. The PMOC's major areas of concern include:

- **ELPEP**: MTACC is not forecasting and trending either cost or schedule contingency accurately because it does not include the significant cost, schedule and contingency impacts of the CM012R bids over budget event and subsequent cancellation of the procurement in 4Q2012. ESA has not accurately calculated the schedule contingency utilization resulting from the repackaging of CM012R and the major procurement delays. ESA has also not addressed the need for utilizing project cost contingency to cover the budget shortfall.
- **Schedule Management Plan**: The ESA project is non-compliant with requirements for IPS Updating, Forecasting, and Schedule Contingency Management. Additionally, ESA is no longer providing any schedule information about future planned contract packages and has ceased providing the monthly IPS updates.
- **Cost Management Plan**: The ESA project is non-compliant with requirements for Cost Estimating, Contract Level EAC Forecasting, Project Level EAC Forecasting, Project Level EAC Forecast Validation, Monthly Update Process and MTACC Cost Contingency Management and Secondary Mitigation.

Revisions to the ELPEP Document: On March 19, 2013, MTACC provided the FTA and the PMOC with its proposed revisions to the ELPEP. The FTA and MTACC have agreed to hold working meetings to progress development of a revised ELPEP. These meetings had been expected to start during 2Q2013 but have been delayed pending agreement on how to proceed without the revised ESA cost and schedule baselines, which are needed to provide a comprehensive revision to the ELPEP document.

6.0 SAFETY AND SECURITY

Project safety statistics for lost time accidents continue to trend above the Bureau of Labor Statistics (BLS) national average at 2.23 vs. 2.20 lost time accidents per 200,000 hours. Although there has been continuing improvement in the overall project safety statistics (2.23 vs. 2.25 during the last reporting period), several contracts have statistics above the average for the project. For the CM004 Contract, the lost time accidents are trending above the ESA Project average (3.07 vs. 2.23 lost time accidents per 200,000 hours). On the CQ039 Contract, which is nearing completion, the lost time accident statistics continue to trend well above the ESA Project

average (5.16 vs. 2.23 lost time accidents per 200,000 hours). ESA did not report any significant security issues for the August 2013 reporting period.

7.0 ISSUES AND RECOMMENDATIONS

Design: The PMOC remains concerned that the GEC and PMT continue to consistently miss all of their target dates for remaining design activities on the project, not just catenary design. The level of effort for the GEC will increase significantly given the development of the CM007 Contract Package and the potential scopes shifts being considered for the remaining Harold Contract Packages. The PMOC has recommended that the PMT develop a tracking sheet with firm dates for interim milestones as a tool to augment the design management process.

Procurement: The lack of stability in the Contract Packaging Plan remains a concern. The PMT continues to shift and split scope among different packages, making it difficult to fully understand the impact of these changes to the overall ESA Program at this time. The ESA PMT is now looking at repackaging the CH057 and CH058 Contracts. The PMOC recommends that the PMT give priority to producing an updated Contract Packaging Plan and adhere to it without shifting scope for the remainder of the project.

The August 1, 2013 planned advertise date for the CM006 (northern structures) package was not met (this is the second time advertise date has slipped, initial forecast for advertising was July 1, 2013) and the advertisement was posted on August 15, 2013, with proposal packages available on August 26, 2013. Advertise date for the CM007 (caverns) package remains TBD. These are critical packages and the continuing slippage of the procurement dates for them is of concern.

The PMOC also remains seriously concerned about delays to other significant procurements, namely: Systems Package 1 (CS179) (currently in negotiations since 2Q2012); CS184 (Tunnel Systems which has now been split into two packages); VS086 (Signal Equipment) and CM014B (GCT Concourse and Fit-out). The Systems work is on the project critical path and award dates for the Systems packages remain TBD.

Contract CM004: The PMOC has previously reported on the issues with 245 Park Ave. Entrance, particularly issues with the escalator and acceptance and opening of the entrance by MNR. As of the date of this report, the Project Office forecasts that it will commission the escalator in September 2013 as previously reported. MTACC has revised the date for Beneficial Use to January 15, 2014. The previously reported issues (MNR acceptance and operations of the escalator and acceptance of architectural railing) are nearing resolution. The PMOC will continue to monitor these issues to confirm the new forecast date is met.

Contract CM013: Through July 31, 2013, the stop work order issued by the MTACC Code Compliance Unit (CCU) for the application of Pneumatically Applied Concrete (PAC) was partially lifted, allowing work in the shaft to resume. The PMOC remains concerned that the impact on the substantial completion date cannot be determined, as the entire stop-work-order has not been lifted.

Contract CQ032: The PMOC notes that the gap between the actual progress and planned progress for CQ032 increased from 2.7% to 28.4%. Even though the PMT has informed the PMOC that the Contract will be re-baselined, which could alleviate this discrepancy, it has not yet been done. As a result, the PMOC remains concerned that the Contractor will not be able to

recover any of the lost time. The PMOC recommends that PMT expedite development of the re-baselined schedule and then follow the new schedule explicitly.

Contract CQ039: The CQ039 contractor completed removal of the four remaining support piles inside the Northern Boulevard tunnel in late July 2013. Other than punch list repairs, the only remaining construction issue is final compensation grout installation, which cannot be done until the ground surrounding the tunnel achieves sufficient thaw. To date, this has not occurred. Additionally, there are still outstanding contractual issues that must be resolved before the contractor can declare Final Completion. Because the contractor is thawing the ground naturally, without any outside influences, it is uncertain when the ground will thaw and, consequently, when Final Completion can be declared.

Contracts CH053/54A: The PMOC remains concerned that costs continue to increase in response to continuing delays to the Substantial Completion date. Although the PMT and the contractor had been working on a revised construction schedule that would result in an SC of December 31, 2013, it became evident that the date was unrealistic and the parties are no longer pursuing completion by then. Furthermore, the ESA forecast SC date slipped by one month since the PMOC's July 2013 Monthly Report, and is now June 11, 2014 (based on current monthly progress rates, the PMOC continues to estimate SC for mid-3Q2014). In order for the ESA PMT to avoid further slippage, the PMOC recommends that ESA place increased priority on the Force Account support that it supplies for the CH053/CH054A contractor (Amtrak and LIRR supply fixed amounts of support for all ESA contracts. The ESA PMT is responsible to decide how that support is distributed among all its contracts).

Railroad Force Account: During August 2013, both LIRR and Amtrak completed all the track construction that each had scheduled on Line 4 in Harold Interlocking. The LIRR reconstructed a total of 1,800 LF of track and installed two new turnouts while Amtrak installed a total of 2,000 LF of Track on Lines 2 and 4 during the special summer track outage. This work was done in close coordination with the CQ031 contractor as it constructed concrete slabs under the tracks for the future Westbound Bypass Tunnel. The work was accomplished on an aggressive 24/7 construction schedule, it was completed on time, and potentially lays the foundation for similar prolonged track outages in future years. The PMOC recommends that the PMT, the railroads, and the contractors continue to work closely with one another so that future project tasks can be accomplished in a similar fashion.

Project Funding/Budget: The PMOC remains concerned about the results of the CM012R bid cancellation and its impact on the project budget. The PMT has not adjusted its CBB (or contingency drawdown) to account for the CM012R bid overrun costs. The PMOC believes that the cost overrun on the cancelled CM012R solicitation will leave the ESA Project with a budget shortfall, which will impact the project's ability to mitigate future cost increases, and may also impact the ability to make timely awards of future contract packages. As of this report the ESA PMT continues its monthly financial reporting as if the bid cancellation had not occurred and there is no impact to the required budget values. The President of MTACC stated at the July 2013 FTA/MTACC Executive Meeting that the budget forecast will not be completed until later in 2013; MTACC is waiting for the final cost for the CS179 Contract, which MTACC had forecast recommendation to award by September 2013 but will not meet that date; the final construction cost estimate for the CM006 Contract; which was provided in August 2013 at $361M; and the cost estimate for CM007 (still under development) before providing a forecast.

The PMOC continues to recommend that ESA include the results of the CM012R bid overrun and continuing delays in awarding packages in its official monthly financial forecasting and reporting. The PMT is obligated under the ELPEP agreement to provide accurate budget updates and forecasts. By not doing so, it remains non-compliant with the following requirements set forth in the CMP:

- Cost Estimating Section 5.2
- Contract Level EAC Forecasting Section 5.3
- Project Level EAC Forecasting Section 5.4
- Project Level EAC Forecast Validation Section 5.5
- Monthly Update Process Section 5.7
- MTACC Cost Contingency Management and Secondary Mitigation Section 6.1

Project Schedule: ESA stated in its June 2013 Quarterly Report that it is currently performing a program level re-plan, with a goal of issuing a revised baseline for review by mid-September 2013 (as stated above). The PMT is obligated under the ELPEP agreement to provide accurate schedule updates and forecasts. By not doing so, it remains non-compliant with the following requirements set forth in the SMP:

- IPS updating: Section 5.2, requirement for updating IPS on a monthly basis
- IPS component schedules and monthly update: Section 5.3
- IPS update process: Section 8.2 documentation
- Forecasting Requirements: Section 5.4, requires that the PMT identify budget and cash flow issues that may impact the project
- Milestones and RSD slippage recovery process: Section 5.5
- Schedule Forecasting and Reporting Process; and Schedule Contingency Management: Section 6

The PMOC does not believe that the PMT will be able to provide a viable draft baseline schedule in mid-September 2013 given the status of the following items:

- CM007 “top down” schedule needs to be fleshed out and finalized.
- Schedules for CM005; CM006; and CM007 need to be inserted into the IPS with proper logic ties.
- Systems Package 1 will not go to the September Board as forecast and, based upon the current CM007 top down schedule, ESA may have to re-examine the Systems Procurement due to the interfaces with this Contract (as well as the interfaces with CM005 and CM006).
- ESA has not provided procurement dates or durations for any other future packages even though these dates need to be integrated into the IPS.
- ESA is currently re-thinking its packaging strategy and schedule going forward for future Harold Contracts that will incorporate lessons learned from previous contracts, regional commitments going forward, and available force account resources and outages. Based

on discussions with the ESA design group, scope shifts among remaining packages are being planned; however, the PMOC has not received any information about the Harold re-planning effort. Consequently, the PMOC does not know where this effort stands.

Risk Management: The PMOC remains concerned that the complexity, risk, and coordination of the Contract packages associated with the CM012R repackaging will likely prove to be more challenging than previously accounted for in MTACC's internal cost estimate and schedule allowance. To the PMOC's knowledge, ESA has not fully developed detailed interface milestone dates for Contracts CM005, CM006, CM007, CM014B, and CS179. There are approximately 40 milestones among these contracts for which access restraints and interface milestones present a major cost and schedule risk.

The PMOC remains concerned about the timing and results of the Systems Risk Workshop, which was held in April 2013. The MTA Director of the Office of Capital Program Oversight stated that he believed the results of that Workshop were of limited value, since interface milestones for CM005, CM006 and CM007 were not accurately defined at that point. One of the goals of the Workshop was to provide data that would be useful to aid in progressing negotiations on the CS179 Systems Package 1 Contract. He directed that the risk model be run again, with more accurate data. MTACC initially planned to rerun the model in June 2013, and then August 2013 when the June date was missed, however this did not occur. Given the continuing delay in re-running the model, the PMOC does not believe the results will be timely enough to be of value in negotiating the CS179 Contract.

The PMOC is also concerned that the process of the comprehensive internal schedule re-baseline and cost estimate evaluation is taking an inordinate amount of time. As mentioned in the Schedule section in this report, the PMOC does not believe that ESA will have a preliminary program revised baseline schedule ready by mid-September, and there is no forecast date for a new Program Budget. Given the amount of changes that have occurred in the ESA Program since the 2012 baseline cost and schedule were approved, the PMOC believes that the risk profile for the entire Program has changed significantly, and recommends that a program-wide Risk Assessment be performed right after ESA has a new cost and schedule baseline.

.

APPENDIX A – ACRONYMS

ARRA	American Recovery and Reinvestment Act
BA	Budget Adjustment
BAFO	Best and Final Offer
C&S	Communications and Signals
CBB	Current Baseline Budget
CCC	Change Control Committee
CCM	Consultant Construction Manager
CD	Calendar Days
CM	ESA Construction Manager (assigned to each contract)
CMP	Cost Management Plan
CIL	Central Instrument Location
CPOC	Capital Program Oversight Committee
CPRB	Capital Program Review Board
CPP	Contract Packaging Plan
CWP	Construction Work Plan
EAC	Estimate at Completion
ELPEP	Enterprise Level Project Execution Plan
ERT	East River Tunnel
ESA	East Side Access
ET	Electric Traction
FA	Force Account
FFGA	Full Funding Grant Agreement
FTA	Federal Transit Administration
GCT	Grand Central Terminal
GEC	General Engineering Consultant
IPS	Integrated Project Schedule
IST	Integrated System Testing
LIRR	Long Island Rail Road
MNR	Metro-North Railroad
MPT	Maintenance and Protection of Traffic
MTA	Metropolitan Transportation Authority

MTACC	Metropolitan Transportation Authority – Capital Construction
NATM	New Austrian Tunneling Method
NTP	Notice to Proceed
NYCT	New York City Transit
OSHA	Occupational Safety and Health Administration
PE	Preliminary Engineering
PMOC	Project Management Oversight contractor (Urban Engineers)
PMP	Project Management Plan
PMT	ESA's Project Management Team
QA	Quality Assurance
RAMP	Real Estate Acquisition Management Plan
RFP	Request for Proposal
RMP	Risk Management Plan
RMCP	Risk Mitigation Capacity Plan
ROD	Revenue Operations Date
RSD	Revenue Service Date
SC	Substantial Completion
SCADA	Systems Control and Data Acquisition
SCC	Standard Cost Category
SEM	Segmental Excavation Method
SMP	Schedule Management Plan
SSMP	Safety and Security Management Plan
SSPP	System Safety Program Plan
SWP	Safety Work Plan
TBD	To Be Determined
TBM	Tunnel Boring Machine
TCC	Technical Capacity and Capability
VE	Value Engineering
WBBY	Westbound Bypass
WBS	Work Breakdown Structure

APPENDIX B – TABLES

Table 1- Project Budget/Cost Table (as of July 31, 2013)

	FFGA			MTA's Current Baseline Budget (CBB)		Expenditures	
	(Millions)	(% of Grand Total Cost)	Obligated (Millions)	(Millions)	(% of Grand Total Cost)	(Millions)	(% of CBB)
Grand Total Cost	**$7,386**	**100**		**$9,824**	**100.0%**	**$5,179.50**	**52.7%**
Financing Cost	$1,036	14		$1,116		**617.6**	**55.3%**
Total Project Cost	$6,350*	86	$4,107	$8,708*	88.6%	**$4,561.90**	**52.4%**
Federal Share	$2,683	36	$1,148	$2,699	31.0%	$1,891.80	21.7%
5309 New Starts share	$2,632	36	$1,098	$2,437	28.0%	$1,634.30	18.8%
Non New Starts grants	$51	0.7	$50	$67	0.8%	$62.10	0.7%
ARRA	0	0	0	$195	2.2%	195.4	2.2%
Local Share	$3,667	50	$2,959	$6,009	69.0%	$2,670.10	30.7%

* CBB represents current MTA Board approved $8,245 million budget plus $463 million for Rolling Stock Reserve (regional investment not included).

**This total does not include Regional Investment amount of $590,732,003.

Table 2 – Summary of Critical Dates

	FFGA	Forecast (F) Completion, Actual (A) Start	
		Grantee*	FTA**
Begin Construction	September 2001	September 2001(A)	September 2001(A)
Construction Complete	December 2013	August 2019	September 2019
Revenue Service	December 2013	August 2019	September 2019

* Source – Grantee forecast Revenue Operations Date per information presented to MTA CPOC on May 21, 2012

**Source –Based on PMOC 2012 risk assessment results.

Table 3 – Comparison of Standard Cost Categories: FFGA vs. CBB

Standard Cost Category (SCC) No.	FFGA SCC baseline (YOE $) M	July 2, 2012 Re-baseline (YOE $)	June 2013 SSC (YOE $) M	July 2013 SSC (YOE $) M	July 2013 % of Rebaseline	June'13 to July '13 Change $M	CBB Variance from FFGA %
10	1,989	2,943	3,073	3,076	104.52%	3	54.65%
20	1,169	1,514	1,366	1,363	90.03%	-3	16.60%
30	356	388	393	393	101.29%	0	10.39%
40	205	488	522	522	106.97%	0	154.63%
50	619	698	677	677	96.99%	0	9.37%
60	165	204	204	204	100.00%	0	23.64%
70	957	674	674	674	100.00%	0	-29.57%
80	1,184	1,649	1,649	1,649	100.00%	0	39.27%
90	169	150	150	150	100.00%	0	-11.24%
Subtotal	**6,813**	**8,708**	**8,708**	**8,708**	**100.00%**	**0**	27.81%
100	1,036	1,116	1,116	1,116	100.00%	0	7.72%
Total Project Cost (10 – 100)	**7,849**	**9,824***	**9,824**	**9,824**	**100.00%**	**0**	25.16%

*This total amount does not include Regional Investment amount of $590,732,003.

**Rolling Stock Reserve is included in the Total Value under SCC # 70

Changes to SCC Codes:

The changes to SCC #10 and SCC #20 are due to funds being transferred from CM012 to CM005 to increase the CM005 contingency from 5% to 10%.

Table 4 -- Core Accountability Items – August 2013

Project Status:		Original at FFGA	Current*	ELPEP **
Cost	Cost Estimate	$7.386B	$9.824B	$8.119B
[redacted]	[redacted]	[redacted]	[redacted]	[redacted]
	[redacted]	[redacted]	[redacted]	[redacted]
Schedule	Revenue Service Date	December 31, 2013	September 2019	April 30, 2018

Total Project Percent Complete		
	Based on Expenditures	56.5 ***
	Based on Earned Value	NA

Major Issue	Status	Comments
Impact of CM012R solicitation cancellation, scope repackaging and re-bidding.	Scope from cancelled CM012R (Manhattan Structures 2) solicitation was split among existing and three new contract packages. Work from CM012R replacement packages are on the project critical path. First new contract package (CM005) was advertised on March 21, 2013 and bids were received on June 20, 2013, and an Estimate for CM006 was provided on August 16, 2013. The two packages together are about $225M over Budget.	Results of this procurement have a major impact on project cost and schedule baseline. The PMT is currently working on developing the remaining contract package (CM007). Impact on project cost and schedule contingency remains TBD.
Major Procurements Delays	Procurement of CS179 (Systems Package 1) continues to slip. MTACC will not meet its goals of having a recommendation to award presented at the September 2013 MTA Board Meeting. Other System Packages (CS284, CS084, and VS086) procurement dates remain TBD. The CM006 package was advertised on August 15, 2013 (initial projection was July 1, 2013). Advertise date for the CM007 and CM014B packages remains TBD.	ESA is no longer providing forecasts for procurement dates on Contracts to be awarded in its official reporting.
Project Schedule	ESA stated in its June 2013 Quarterly Progress report that it is	The PMOC does not believe that ESA will be in a position to

	in the middle of re-planning the project baseline and will not have a new baseline for review until at least mid-September 2013. It also stated that it would not be providing IPS updates until it has a new schedule baseline.	release a draft revised baseline by mid-September as they committed to in the June 2013 Quarterly report.
Amtrak Integrated Master Schedule	Develop an integrated master schedule that will lay out the upcoming Amtrak projects (Moynihan, ERT Track Rehab., Brookfield, etc.) and overlay the ESA work at Harold. The ESA Risk Manager stated that he received a schedule through the end of 2013 for Moynihan project.	This issue has been outstanding since MTACC committed to producing the Integrated Master schedule in June 2012. An ESA staff member is coordinating this activity on a part-time basis until a dedicated scheduler is hired; however progress in producing this schedule has been meager.
Next Quarterly Meeting:	September 2013 (tentative)	

* Note that $9.824B (finance included) and the September 2019 RSD are the MTA cost and schedule baselines approved in May 2012.

** 2010 Enterprise Level Project Execution Plan (ELPEP) reflecting medium level of risk mitigation, excluding financing cost of $6,116 million. ELPEP is to be updated.

*** Expenditure percentage based on dividing ESA "Current Baseline Budget" figure by "Invoiced" figure excluding Rolling Stock Reserve.